

25VECV03581 25VECV03581

County: los-angeles

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Department: 107

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Case Number: 25VECV03581 Hearing Date: September 15, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Hand N

Property Management, LLC,

Plaintiff,

v.

Cashbloom,

LLC, et al.

Defendants.

Case

Number Department

25VECV03581 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Judgment

on the Pleadings

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant without leave to amend as to
the first cause of action.

Deny as to the second through
fourth causes of action.

I.

BACKGROUND

On

May 21, 2024, Plaintiff obtained a judgment (the "Judgment") against Defendants Cashbloom, LLC ("Cashbloom") and Ramin Aminian ("Aminian") in related case LASC No. 20STCV42954 ("Prior Action").

Plaintiff alleges Cashbloom became insolvent and was unable to pay the full settlement owed in the amount of \$3,259,578.42. Plaintiff alleges that Cashbloom made several overpayments to Defendant Aminian, a member of Cashbloom, around the time it became insolvent and was unable to pay the settlement. Plaintiff alleges the payments were improper and not for reasonable equivalent value.

Plaintiff alleges Aminian has not paid the entirety of the amount owed under the Judgment.

On

June 27, 2025, Plaintiff filed a complaint against Defendants Cashbloom and Aminian alleging (1) suite on judgment per Code of Civil Procedure section 683.050; (2) creditors' suit per Code of Civil Procedure section 708.210, et seq.; (3) voidable transfer per Civil Code section 3439.05, et seq.; and (4) voidable transfer per Civil Code section 3439.05 subdivision (a).

On

July 30, 2026, Defendant Aminian filed the instant Motion for Judgment on the Pleadings. On September 1, 2026, Plaintiff filed an opposition. On September 8, 2026, Defendant filed a reply.

II.

LEGAL

STANDARD

“Judgment on the pleadings is akin to a demurrer and is properly granted only if the complaint does not state facts sufficient to state a cause of action against that defendant. The grounds for the motion must appear on the face of the complaint, and in any matters subject to judicial notice. The court accepts as true all material factual allegations, giving them a liberal construction, but it does not consider conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts. Appellate courts review the record de novo to determine whether the complaint states a cause of action as a matter of law.” (Shea Homes Limited Partnership v. County of Alameda (2003) 110 Cal.App.4th 1246, 1254.)

A statutory motion for judgment on the pleadings may be brought pursuant to CCP §438. CCP §438(c)(1) states, “A motion provided for in this section may only be made on one of the following grounds:...(B) If the moving party is a defendant, that either of the following conditions exist: (i) The court has no jurisdiction of the subject of the cause of action alleged in the complaint; (ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant.” A motion for judgment on the pleadings may be brought on the same grounds raised in a previously overruled demurrer “provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.” (Code of Civ. Proc., §438, subd. (g)(1).)

III.

DISCUSSION

A. Request for Judicial Notice

Defendant requests judicial notice of the Satisfaction of Judgment and 12/2/24 Minute Order in the Prior Action. Defendant’s request is granted pursuant to Evidence Code section 452 subdivision (d)(1).

B. Meet and Confer

Defendant met and conferred with Plaintiff telephonically on July 12, 2026. The meet and confer required under Code of Civil Procedure section 439 is satisfied.

C. Res judicata does not bar the first, third and fourth causes of action

Defendant

moves for judgment on the pleadings of the first, third and fourth causes of action for (1) suit on judgment per CCP §683.050; (3) voidable transfer per Civil Code section 3439.04 subdivision (a)(1); and (4) voidable transfer per Civil Code section 3439.05. Defendant argues these claims are an impermissible attempt to relitigate the Prior Action and to obtain additional monies under the Judgment therein.

Defendant

argues Plaintiff's complaint omits several material facts that require judgment on the pleadings of these causes of action.

Defendant argues that after the Judgment, Defendant Aminian and Plaintiff entered into a settlement agreement whereby he would pay \$185,000 in full satisfaction of his liability under the Judgment. Defendant argues he paid the settlement amount and successfully moved to enforce the settlement agreement when Plaintiff claimed he did not pay the full settlement amount. Defendant submits for judicial notice the Minute Order in the Prior Action granting his motion for enforcement of settlement, finding that he paid his \$185,000 settlement obligation in full. Defendant also submits for judicial notice the Satisfaction of Judgment entered in the Prior Action in his favor. Defendant argues these judicially noticeable facts establish that the first, third and fourth cause of action are barred by res judicate and/or collateral estoppel.

As noted in DKN Holdings LLC v.

Faerber (2015) 61 Cal.4th 813, 824, the use of the terms "res judicata" and "collateral estoppel" historically in case law has resulted in enormous confusion. "To avoid future confusion, we will follow the example of other courts and use the terms 'claim preclusion' to describe the primary aspect of the res judicata doctrine and 'issue preclusion' to encompass the notion of collateral estoppel." (DKN Holdings LLC, supra, 61 Cal.4th at 824.)

"Claim and issue preclusion have different requirements and effects. Claim preclusion prevents relitigation of entire causes of action. Claim preclusion applies only when a second suit

involves (1) the same cause of action (2) between the same parties or their privies (3) after a final judgment on the merits in the first suit. Issue preclusion, by contrast, prevents relitigation of previously decided issues, rather than causes of action as a whole. It applies only (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (Samara v. Matar (2018) 5 Cal.5th 322, 326).

"Issue

preclusion differs from claim preclusion in two ways. First, issue preclusion does not bar entire causes of action. Instead, it prevents relitigation of previously decided issues. Second, unlike claim preclusion, issue preclusion can be raised by one who was not a party or privy in the first suit. Only the party against whom the doctrine is invoked must be bound by the prior proceeding. In summary, issue preclusion applies: (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (DKN Holdings LLC, supra, 61 Cal.4th at 825.)

"California adheres to a 'primary

rights' theory in determining whether the claims or causes of action are the same. The significant factor is whether the claim or cause of action is for invasion of a single primary right. Whether the same facts are involved in both suits is not conclusive...Moreover, more than one act may constitute a single cause of action. Under Pomeroy's primary rights theory, a cause of action consists of 1) a primary right possessed by the plaintiff, 2) a corresponding primary duty devolving upon the defendant, and 3) a derelict or wrong done by the defendant which consists in a breach of such primary right and duty. Thus, two actions constitute a single cause of action if they both affect the same primary right." (Burdette v. Carrier Corp. (2008) 158 Cal.App.4th 1668, 1684.)

"If

two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery." (Le Parc Community Ass'n v. Workers' Compensation Appeals Bd. (2003) 110 Cal.App.4th 1161, 1170.)

Defendant

fails to establish that claim preclusion, or res judicata, applies. Parties did not previously litigate the causes of action alleged in the first, third and fourth causes of action. The first cause of action is a suit on the Judgment pursuant to Code of Civil Procedure section 683.050, which provides, “nothing in this chapter limits any right the judgment creditor may have to bring an action on a judgment...” (Code of Civil Procedure section 683.050.) The third and fourth causes of action are statutory causes of action for fraudulent transfers that allegedly took place after entry of the Judgment. Plaintiff seeks to enforce its rights under the Judgment, to recover damages for injury resulting from Defendants’ alleged fraudulent attempts to avoid the Judgment and to collect thereon. These causes of action therefore seek to enforce a different primary right from that raised in the Prior Action, which sought to enforce Plaintiff’s right to repayment of its loan. (RJN, Ex. B, p. 1; Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904.)

Defendant

also fails to establish that issue preclusion applies. The relevant inquiry to determine identity of issues is “whether the operative facts and law relating to this action are different from the prior action.” (Daar v. Newman v. VRL International (2005) 129 Cal.App.4th 482, 486; MIB, Inc. v. Supr. Ct. (1980) 106 Cal.App.3d 228, 229-230, .) Defendant fails to clearly identify the specific issue he believes was already finally adjudicated in the Prior Action that would the first, third and fourth causes of action as a matter of law. As discussed above, Plaintiff is not attempting to relitigate liability under the parties’ loan agreement. Plaintiff is attempting to enforce the Judgment and undo fraudulent transfers allegedly undertaken to avoid the Judgment. The operative facts and law at issue in this case are different from those in the Prior Action.

D. Plaintiff’s first cause of action for creditor’s suit pursuant to Code of Civil Procedure section 683.050 fails to state a cause of action against Aminian

Although Plaintiff fails to establish that the first cause of action is barred by issue preclusion or res judicata, Plaintiff’s judicially noticeable evidence establish that Defendant cannot state a claim for creditor’s suit pursuant to Code of Civil Procedure section 683.050. A creditor’s claim pursuant to section 683.050 allows a judgment creditor to bring an action on a judgment. (Code of Civ. Proc., §683.050, subd. (a).) Based on Plaintiff’s RJN Exhibits A and B, Plaintiff is no longer a judgment creditor on any judgment against Defendant Aminian. A Full Satisfaction of Judgment

was filed and is attached as Exhibit A.

Plaintiff

admits that its creditor's suit seeks to enforce the Judgment against Cashbloom, not Aminian. (Opposition, 6:25.) Plaintiff admits that the Settlement Agreement precludes any action against Aminian for recovery of the Judgment. Plaintiff cites to Code of Civil Procedure section 708.210, but that is the basis for Plaintiff's second cause of action, not Plaintiff's first cause of action.

However,

the first cause of action for creditor's suit seeks to enforce the Judgment against Aminian. It does not seek recovery of assets fraudulently transferred to Aminian, which section 708.201 contemplates. Instead, Plaintiff alleges that Aminian "has failed to pay the entirety of the amount owed under the Judgment," the first cause of action alleges the Judgment entered against Aminian in the amount of \$251,623.87 and the prayer for relief requests judgment for the principal sum remaining on the Judgment. Plaintiff's allegations are directly contradicted by the judicially noticeable evidence.

Plaintiff

cannot allege that it is a judgment creditor Aminian's or that it has an outstanding judgment against Aminian. Defendant Aminian's motion for judgment on the pleadings is granted without leave to amend as to the first cause of action for creditor's suit pursuant to Code of Civil Procedure section 683.050.

E. Plaintiff's second cause of action for creditor's suit under Code of Civil Procedure section 708.210 states a cause of action against Aminian

Code of Civil Procedure section 708.210 provides, "If a third person has possession or control of property in which the judgment debtor has an interest or is indebted to the judgment debtor, the judgment creditor may bring an action against the third person to have the interest or debt applied to the satisfaction of the money judgment."

Defendant argues Plaintiff's second

cause of action fails to identify the specific property or debt in Aminian's possession that rightfully belong to Cashbloom, when Aminian came into possession of it or how it relates to the conduct already resolved in the Prior Action. Defendant fails to cite any authority holding that a cause of action under section 708.210 must be pled with heightened specificity akin to that applicable to common law fraud claims. Section 708.210's statutory elements do not include fraud. Plaintiff's allegation that Defendant Aminian is currently in possession of "cash, assets or business income rightfully belonging to Cashbloom" is sufficient to survive motion for judgment on the pleadings.

Defendant Aminian's Motion for Judgment on the Pleadings is denied as to the second cause of action for creditor's suit under Code of Civil Procedure section 708.210.

F. Plaintiff's third and fourth causes of action for statutory fraudulent transfer under Civil Code sections 3439.04 subdivision (a)(1) and 3439.05 subdivision (a) state causes of action against Aminian

The elements of a fraudulent conveyance claim under the Uniform Fraudulent Transfers Act ("UFTA") are set forth at Civil Code section 3439.04 subdivision (a): "A transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor's claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation as follows: (1) With actual intent to hinder, delay, or defraud any creditor of the debtor...." (Civ. Code, §3439.04, subd. (a).) A transfer made or obligation incurred by a debtor is voidable as to a creditor whose claim arose before the transfer was made or the obligation was incurred if the debtor made the transfer or incurred the obligation without receiving a reasonably equivalent value in exchange for the transfer or obligation and the debtor was insolvent at that time or the debtor became insolvent as a result of the transfer or obligation.

Defendant argues the third and fourth causes of action for statutory fraudulent transfer fail to state a claim against him, because they are not pled with sufficient specificity. Defendant argues Plaintiff alleges fraudulent transfers totaling \$340,000 but Plaintiff fails to allege when those transfers occurred relative to Aminian's payment of the \$185,000

settlement, Cashbloom's alleged insolvency.

Defendant argues Plaintiff also lacks standing to sue Aminian for fraudulent transfer, because it is no longer Aminian's judgment creditor.

Plaintiff alleges it is still

Cashbloom's judgment creditor and it has standing to sue for fraudulent transfers by Cashbloom under the UVTA.

Plaintiff need not be a judgment creditor of Aminian.

Defendant Aminian also fails to cite

any authority requiring that a statutory claim for fraudulent transfer be plead with heightened specificity ordinarily applied to common law fraud. Plaintiff alleges sufficient facts to state a claim for fraudulent transfer under the UFTA against Aminian as the transferee of the fraudulent transfer. Plaintiff

alleges it is a creditor of Cashbloom, that Cashbloom made several overpayments to Aminian at or around the same time it became insolvent, that these payments were not for reasonable value and amounted to \$340,000, that property was transferred to Aminian at this time without receipt of reasonable value and that the transfers were made without any legitimate business purpose or corresponding value exchange, that the transfers rendered Cashbloom insolvent and the transfers were made with the actual intent to hinder, delay or defraud Plaintiff. (Complaint, ¶¶11-13, 24-31.)

Defendant Aminian's Motion for

Judgment on the Pleadings is denied as to the third and fourth causes of action for fraudulent transfer.

IV.

CONCLUSION

2

Defendant Aminian's Motion for

Judgment on the Pleadings is granted without leave to amend as to the first cause of action for creditor's suit under Code of Civil Procedure section 683.050 and denied as to the second cause of action for Code of Civil Procedure section 708.210, the third cause of action for fraudulent transfer under Civil Code section 3439.04 and fourth cause of action for fraudulent transfer under Civil Code section 3439.05.

Dated: September 15, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court